

GZ: 2021-0.432.224 dated August 16, 2021 (Case Number: DSB-D205.235)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The Data Protection Authority decides on the data protection complaints of Gustav A*** (complainant) dated August 3, 2018, and June 25, 2019 (received on June 27, 2019) against N*** AG (respondent) due to alleged violations of the right to confidentiality as follows:

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The complaints are dismissed.

Legal bases: Art. 4 No. 11, Art. 7, Art. 51 para. 1, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1, 18 para. 1, as well as 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended.

REASONING

A. Submissions of the Parties and Procedural History

1. The complainant filed a complaint on August 3, 2018 (received on the same day) under Art. 77 GDPR regarding the "unlawful obtaining of consent for data transfer (violation of Art. 7 GDPR)" and requested a determination of the violation of his rights. The procedure was conducted under GZ: D123.289.

In justification, he stated that when setting up a vacation *box (in principle), consent from the customer for the transfer of address data to third parties is obtained, and this transfer would include the transmission to companies for direct marketing purposes and address publishers. The consent is part of the contract and is not clearly separated from other matters. It is essential that in the corresponding box, the checkmark for consent is already set. If the customer does not wish for the data to be transferred, they must actively remove this checkmark. This is also evident from the consent text, which states: "You are entitled at any time and without giving reasons to prohibit the transmission to third parties for marketing purposes. In this case, remove the checkmark in the box below or direct your ...".

Additionally, the complainant described that the contract processing is carried out at the counter via an electronic terminal. The screen size of this terminal is relatively small, and the consent text with the pre-selected checkmark is also displayed on this terminal. This makes it difficult to distinguish the consent text from the actual contract text. The customer's signature is also provided on this terminal. Due to the small font size of the contract and consent text, it is particularly difficult for persons with visual impairments to read the text correctly, which could lead to a misunderstanding of the actual intention of the already set checkmark, as its removal is what constitutes consent, potentially leading the customer to decide contrary to their own motivation. Finally, the consent for data transfer also includes data of any co-users of the *box.

2. In the context of the statement requested by the Data Protection Authority on August 20, 2018, the respondent initially clarified that the complainant had objected to the data transmission in question when concluding a "vacation *box agreement" and that the respondent therefore does not use any personal data of the complainant for marketing purposes.

Regarding the question of legally effective consent, the respondent argued that active consent to data transfer to third parties is not required in the form and that there is no data protection violation in the contested procedure. On the one hand, the respondent is the holder of a business license as an address publisher and direct marketing company according to § 151 GewO. On the other hand, every person applying for a vacation *box is provided with the information required by the GewO and is given the opportunity to prohibit otherwise permissible data use for marketing purposes by third parties.

Thus, the complainant was able to prohibit this not only immediately upon application at the respondent's office but also later at any time and through multiple contact options. Furthermore, § 151

GewO derogates as *lex specialis* the provisions of the GDPR and does not provide for any active action/consent in this regard.

The provision of information via touchpad in the accepting office is customer-friendly. The fact that the information text is located directly above the signature field serves to increase the attention of the affected person. All employees are instructed to assist those individuals who indicate that they have difficulties reading or understanding the text.

****Understanding of the Text****

The complainant – like any other customer – could have printed the application form for reading before signing it and only signed it afterwards. Attention is also paid to an adequate font size, which is 10 ** on both the touch pad and the physical form, exceeding the data protection law's possible "reference size" of 8 **.

The respondent assumes in this case that the complainant also read the information provided and correctly understood that he could immediately prohibit the use of his data for marketing purposes by unchecking the pre-checked box. Even if he did not sufficiently notice the data information on the touch pad before his signature, the complainant still received a printed copy of the signed form in the branch and could have prohibited the use of his data there or at any later time.

Regarding the question of whether the requested "consent" was sufficiently delineated from the contract text, the respondent reiterated its view that this was not consent in the sense of Art. 7 GDPR, but rather (clearly delineated by paragraph) information that was not part of the subject matter of the contract. If the contested information were provided only after the customer's signature and thus outside the contract text, the respondent feared that it would no longer be read or perceived by the affected customers.

Concerning the contested rights of third parties, the respondent argued that the complainant's civil representation authority only existed regarding the specific contract and that he had also prohibited the use of data by other recipients of the vacation *box for marketing purposes.

3. The respondent's statement was communicated to the complainant with the resolution of the Data Protection Authority on March 24, 2021, GZ: DSB-D123.289/0002-DSB/2018, and he was simultaneously given the opportunity to provide additional comments, which the complainant did not utilize.

4. In the subsequent submission (initiating another complaint procedure) dated June 25, 2019 (received on June 27, 2019), improved on July 25, 2019, the complainant essentially repeated his submissions from August 3, 2018, in the context of complaint procedure GZ: D123.289, with the difference that the "vacation *box agreement" attached to the complaint was dated June 24, 2019. This procedure was recorded under GZ: D205.235.

5. In the following statement from the respondent, which essentially repeated the submissions from August 20, 2018, dated September 5, 2019, it was stated that in this case, the data had not been passed on due to a prior objection from the complainant. Therefore, there was a lack of standing to complain.

6. The two complaint procedures D123.289 and D205.235 were combined for a joint decision under GZ: D205.235 in accordance with § 39 Abs. 2 AVG, and the parties were granted the opportunity to be heard with the resolution dated June 17, 2021, along with the submission of the investigation results.

7. After an extension of the deadline, the respondent stated in a submission dated July 22, 2021, that the complainant's data had not been passed on to third parties for marketing purposes. The complainant had already exercised his right to object in both cases at the branch of the respondent. The information texts relevant to the proceedings from the years 2018 and 2019 were no longer in use.

8. The complainant did not make any further statements.

****B. Subject of the Complaint****

Based on the submissions of the complainant, the subject of the complaint is whether the respondent

violated the complainant's right to confidentiality by processing the complainant's data for marketing purposes in the context of the contract form for setting up a vacation *box.

****C. Findings of Fact****

1. The respondent is a business engaged in address publishing and direct marketing companies according to § 151 GewO. Among other things, the respondent offers its customers the opportunity to store incoming mail at the responsible office of their residential or business address for a predetermined period. The establishment of such a *box "Vacation" can be ordered both online and on-site at a branch. If the order or establishment of the *box takes place in a branch of the respondent on-site, a touch pad terminal provided there is used for this purpose.

****Assessment of Evidence:**** The findings are based on the corresponding statements of the parties involved in their submissions dated August 3 and August 20, 2018, as well as an official investigation by the Data Protection Authority.

2. The complainant commissioned the establishment of a *box "Vacation" at the office of his residence using the aforementioned touch pad terminal, and the following agreement was concluded between the respondent and the complainant on August 3, 2018 (formatting not reproduced 1:1):

*box Vacation

Day Month Year Day Month Year

Valid from: 13 06 2018 Valid until: 19 08 2018

Recipient: Price: EUR ...

Mr. A*** Gustav

Mr.

Mrs.

Previous address:

S***straße 2-4/35

2*** L ***

The vacation box is to be set up at:

N***stelle 2*** F***gasse 7

2*** L ***

Incoming shipments will be collected from

20.08.2018.

Phone Email

The following must be kept ready:

Letters and parcels (excluding RSa and RSb letters, parcels M with tracking)

Newspapers, Info, Mail

Monetary amounts

I am authorized and empowered to conclude the vacation box on behalf of any co-users mentioned.

The General Terms and Conditions for the vacation box of N*** AG in their respective valid version apply,

available among others at n**at/* agb.

Information on data usage: Your personal data (salutation, title, first name, last name, date of birth, address) may be transmitted by N*** AG to third parties according to § 151 Trade Regulation Act for marketing purposes.

You are entitled at any time and without giving reasons to prohibit the transmission to third parties for marketing purposes. In this case, remove the checkmark in the box below or direct your objection to

www.n**at/ kontakt, phone 0***** or by writing to

N*** Customer Service, Z*gasse 34, 1*** W***.

I do not object to data transmission.

Identity of the client evidenced by:

ID type: Austrian driver's license

ID number:

Date of issue:

Issued by:

Date Signature (company signature)

v2.0

Taken over on

Notes from N***:

Day Month Year

03 08 2018

Signature of the employee

Form number: 8*****

Assessment of evidence: This finding is based on the initiating submission of the proceedings dated August 3, 2018, particularly on the copy of a printout of the agreement concluded between the parties to the proceedings, which was handed over to the complainant – according to his own statements – following his signature via the touch pad terminal, and whose authenticity was never questioned by the respondent.

3. In the context of the commissioning or establishment of the *box via the touch pad terminal, the complainant was – upon calling up the corresponding page – (also) informed about the data usage related to the *box "Vacation" (formatting not reproduced 1:1):

Information on data usage: Your personal data (salutation, title, first name, last name, date of birth, address) may be transmitted by N*** AG to third parties according to § 151 Trade Regulation Act for marketing purposes.

You are entitled at any time and without giving reasons to prohibit the transmission to third parties for marketing purposes. In this case, remove the checkmark in the box below or direct your objection to www.n**at/kontakt, phone 0***** or by writing to N*** Customer Service, Z*gasse 34, 1*** W***.

I do not object to data transmission.

The (above depicted) checkbox marked "I do not object to data transmission." was pre-checked.

By clicking the checkbox and removing the checkmark, the data transmission for marketing purposes could be prohibited.

Assessment of evidence: The findings regarding the provided information and the design of the form are based on the corresponding consistent statements of the parties to the proceedings in their submissions dated August 3 and 20, 2018.

In particular, the fact that the described and visible checkbox from the above illustration is (in principle) pre-checked when the relevant page is called up arises, on the one hand, from the appellant's submissions in his complaint dated August 3, 2018, which the respondent also confirms in its submission dated August 20, 2018, insofar as it states that the appellant "can immediately prohibit the use of data for marketing purposes by removing the checked box." On the other hand, this is clearly evident from the (information) text above the checkbox in question, which states that the transmission of personal data to third parties for marketing purposes can be prohibited, and the person concerned "should remove the check from the following box in this case."

4. In the present case, the appellant prohibited the transfer of data for marketing purposes by clicking the checkbox and thereby unchecking it, and his personal data collected in connection with the establishment of the *fach "Vacation" was not forwarded to third parties for marketing purposes.

Assessment of Evidence: This finding arises, on the one hand, from the above illustration of the signed contract text, from which it is evident that no checkmark is set in the described checkbox, and the appellant has neither claimed the actual transmission of his personal data in his submission of August

3, 2018, nor at any later time. On the other hand, the finding is based on the statements of the respondent in its submission dated August 20, 2018, according to which the appellant "objected to the transmission of the data in question when concluding his vacation *fach agreement, and therefore N*** AG does not use any personal data for marketing purposes."

5. With the subsequent agreement dated June 24, 2019, the appellant commissioned the establishment of a *fach "Vacation" again in the following year using the aforementioned touch pad terminal (formatting not reproduced 1:1):

*fach Vacation

Day Month Year Day Month Year

Valid from: 13 06 2018 Valid until: 19 08 2018

Recipient: Price: EUR

Mr. A*** Gustav, born *3. *1. 19**

Mrs. A*** Luise

Mr. A*** Franz

Previous address:

S***straße 2-4/35

2*** L***

The vacation *fach is to be established at:

N***stelle 2*** F***gasse 7

2*** L***

Incoming shipments will be picked up from

15.07.2019.

Phone Email

The following must be kept ready:

Letters and packages (excluding RSa and RSb letters, package M with tracking)

Newspapers, info, mail

Monetary amounts

I am authorized and empowered to conclude the vacation *fach on behalf of any mentioned co-users.

The General Terms and Conditions of the vacation *fach of N*** AG in their respective valid version apply,

available, among others, at n**at/* agb.

Information on data usage: Your personal data (salutation, title, first name, last name, date of birth, address) may be transmitted by N*** AG to third parties according to § 151 Trade Regulation Act for marketing purposes.

You are entitled at any time and without giving reasons to prohibit the transmission to third parties for marketing purposes. In this case, please check the following box or direct your objection to

www.n**at/kontakt, phone 0***** or by writing to

N*** Customer Service, Z*gasse 34, 1*** W***.

X

I do not agree to data transmission.

Identity of the client verified by:

ID type: Austrian driver's license

ID number: 2*****

Date of issue: 1*.6. 20**

Issued by: bh *

Date: Signature (company signature)

Received on: v2.0

Notes from N***:
Day Month Year
24 06 2019
Signature of the employee
Form number: 8*****

Assessment of Evidence: This finding is based on the initiating submission dated June 27, 2019, particularly on the copy of the printout of the agreement concluded between the parties to the proceedings, which was handed to the appellant – according to his own statements – after his signature via the touch pad terminal, and the authenticity of which was never questioned by the respondent.

6. In the context of the commissioning or establishment of the *fach using the touch pad terminal, the appellant was – upon calling up the corresponding page – (also) informed about the data usage related to the establishment of the *department "Vacation" informed (formatting not reproduced 1:1):

I am authorized and empowered to conclude the vacation department on behalf of any listed users of the vacation department.

The General Terms and Conditions of the vacation department of N*** AG in their currently valid version apply, available
inter alia at www.n**.at/agb.

Information on data usage: Your personal data (salutation, title, first name, last name, date of birth, address) may be transmitted by N*** AG to third parties in accordance with § 151 of the Trade Regulation Act for
marketing purposes.

You are entitled at any time and without stating reasons to prohibit the transmission to third parties for marketing purposes. In this case, please check the box below or direct your objection to
www.n**.at/kontakt, phone 0*****, or by writing to
N*** Customer Service, Z*gasse 34, 1*** W***.

X

I do not agree to the transfer of data.

The (above depicted) checkbox marked "I do not agree to the transfer of data." was (initially) empty. By clicking the checkbox and marking it, the transfer of data for marketing purposes could be prohibited.

Assessment of evidence: The findings regarding the provided information and the design of the form are based on the corresponding statements of the parties involved in the proceedings.

7. In the present case, the complainant prohibited the transfer of data for marketing purposes by clicking the checkbox, and his personal data collected in connection with the establishment of the *department "Vacation" was not forwarded to third parties for marketing purposes.

Assessment of evidence: This finding arises, on the one hand, from the above depiction of the signed contract text, and the complainant has not claimed the actual transmission of his personal data either in his submission of June 27, 2019, or at any later time. On the other hand, the finding is based on the statements of the respondent in her submission dated September 5, 2019, according to which the complainant objected to the data transmission in question at the time of concluding his vacation *department agreement.

8.

The agreements regarding the "**department Vacation" were each accompanied by the following information letter (formatting not reproduced 1:1, excerpted as far as relevant to the proceedings):
Information on Data Use in accordance with the General Data Protection Regulation (GDPR):

N*** AG (Address: N*** Customer Service, Z***gasse 34, 1***, W*** I Email: kunden-service@n**.com
I Tel. 0*****) processes your data for the following purposes:

1. Allocation of Shipments

Your data is used for logistics purposes, as the desired delivery of shipments would not be possible without this data. Even after the end of the contract, the name and address of all individuals will continue to be processed to deliver shipments. Data storage after the end of the contract is carried out in the legitimate interest of N*** AG to ensure that your shipments can be delivered quickly and cost-effectively with the support of automation.

The legal bases for this data use are the contract with you as well as Art. 6 para. 1 lit. b and f GDPR.

2. Marketing

N*** AG has a legitimate interest in promoting its services and products. Therefore, your data (salutation, title, first name, last name, date of birth, address) may be used to send you information about products and services of N*** AG. Additionally, your data (salutation, title, first name, last name, date of birth, address) may be processed for third-party marketing purposes (acting as a publisher of addresses and direct marketing company). If you have not objected to the use of your data for third-party marketing purposes, this data may be transmitted to companies for direct marketing purposes. You have the right to prohibit the use of your data for marketing purposes at any time and without providing reasons. In this case, please direct your objection to www.n**at/kontakt, by phone at 0*****, or by writing to N*** Customer Service, Z***gasse 34, 1***, W***.

The legal bases for the marketing use are Art. 6 para. 1 lit. f GDPR in conjunction with Recital 47, as well as § 151 GewO.

3. Duration of Data Storage

Your contract for the vacation mailbox will be stored for up to 3 years after the end of the contract, provided you have objected to the use of data for third-party marketing purposes; otherwise, as long as your data is used for marketing purposes, until you object to the marketing use. The name and address of all individuals will be stored as long as they are needed for the delivery of shipments.

4. Your Rights

If you wish, we will provide you with information about your personal data that we process at any time. Additionally, you have the right to data portability, restriction of processing, correction, or deletion of your personal data in certain cases, as well as a right to object to processing. You also have the option to file a complaint with the Austrian Data Protection Authority.

D. Legally, this results in:

1.) The complainant stated in his constitutive submission for the proceedings under GZ: D123.289 dated August 3, 2018, that he is filing a complaint regarding the "unlawful obtaining of consent for data transfer" and based his assertion primarily on the fact that the respondent, in the context of setting up a vacation mailbox, requests consent for the transfer of personal data to third parties for marketing purposes through a pre-checked checkbox, thus violating Art. 7 GDPR.

2.) The Data Protection Authority has already stated that the rights of the data subjects are exhaustively listed in Chapter III of the GDPR (Art. 12 to 23), but a data subject can rely on any provision of the GDPR within the framework of a complaint procedure.

as long as this ultimately leads to a conceivable violation of the right to confidentiality under § 1 para 1 DSG (see DSB of September 13, 2018, DSB-D123.070/0005-DSB/2018, according to which a violation by the controller against Art. 32 GDPR can lead to a violation of § 1 para 1 DSG).

3.) In principle, it is possible that a data subject is violated in their right to confidentiality if the request for consent to processing is made using a method that does not meet the requirements for consent according to Art. 4 no. 11 GDPR and Art. 7 para. 2 GDPR.

4.) In this context, and in light of the fact that according to the consistent case law of the VwGH, party statements (including submissions [Walter/Kolonovits/Muzak/Stöger9 Rz 152]) in the proceedings must be interpreted exclusively according to their objective meaning (see also VwGH November 6, 2006, 2006/09/0094; with further references) and it is decisive how the statement (see VwGH July 28, 2000, 94/09/0308 et al.) must be objectively understood considering the specific legal regulation, the purpose of the proceedings, and the file situation (VwGH January 24, 1994, 93/10/0192; November 6,

2001, 97/18/0160; January 19, 2011, 2009/08/0058; see also VfSlg 17.082/2003), it must be assumed regarding the submission of August 3, 2018, that there is a complaint due to the violation of the right to confidentiality.

5.) Similarly, the complainant criticized in the submission initiating the complaint procedure for GZ: D205.235 on July 25, 2019, the unlawful obtaining of consent or, as a result, the unlawful processing of his personal data and inferred a violation of the right to confidentiality from this.

6.) In light of the essentially identical complaint submissions and facts, the procedural connection in this case proved to be expedient for procedural economic reasons according to § 39 para. 2 AVG.

7.) Regarding the complaint submissions, it should be noted at the outset that Art. 77 para. 1 GDPR as well as § 24 para. 1 DSG explicitly stipulate that the right to lodge a complaint with the supervisory authority only exists if the data subject believes that the processing of their personal data violates the GDPR or § 1 or Art. 2 of the first main section of the DSG. The wording of the law therefore presupposes an actual processing of the personal data of the affected person.

8.) As can be seen from the findings, it is undisputed that personal data of the complainant (in particular first and last name, date of birth, address) were collected in the context of the contract conclusion "holiday" and consequently also processed by the respondent in accordance with Art. 4 no. 2 GDPR for the purpose of contract fulfillment. However, this was not contested by the complainant at any time.

9.) Contrary to the complainant's view, there was neither an obtaining of data protection consent nor a (further) processing for third-party marketing purposes in this case:

10.) Both from the wording of the agreement of the "holiday" from 2018 ("I do not object to data transfer.") and from 2019 ("I do not agree to data transfer.") it is evident that clicking the "checkbox" does not express an affirmative declaration of intent for data processing in the sense of Art. 4 no. 11 GDPR, but rather allows for a rejection in the form of an objection according to Art. 21 leg. cit. This is also evident from the information letter of the respondent underlying the findings, from which it clearly appears that the data processing for third-party marketing purposes is based on the legal basis of "legitimate interests" (Art. 6 para. 1 lit. f GDPR) and of which the complainant, according to his own statements, was also aware.

11.) In the present case, the complainant effectively lodged an objection by clicking the (pre-checked) checkbox and consequently, no further transfer or other processing of his personal data for marketing purposes, as contested by the complainant, took place.

12.) Thus, a decision was to be made accordingly.